BIZZDESIGN END USER LICENSE AGREEMENT

This End User License Agreement ("Agreement") is a contract between you ("End User") and **Alfabet Software FZ-LLC,** a Bizzdesign Company, with its premises at *Ground Floor, Building DMC5, Dubai Media City, UAE*, ("Licensor" or "Supplier") for the use of the software product offerings listed in **EXHIBIT A**, attached to this Agreement, and its user documentation ("Software Documentation"), together "the Software".

Please read this Agreement carefully. It contains important terms and conditions that may affect End User and its use of the Software. By signing this Agreement, or by installing, copying or by using the Software, End User agrees to be bound fully by the terms and conditions of this Agreement, including but not limited to the disclaimers contained herein. If you do not agree to these terms, do not install, copy, or use the Software in any way.

1 **SOFTWARE LICENSE**

1.1 **Software License**: End User is granted by Licensor, or by any of Licensors' distributors or other reselling partners ("End Users' Supplier"), a non-exclusive, non-transferable (sub)license to use the Software, strictly subject to the terms and conditions in this Agreement.

2 **AUTHORIZED USE**

2.1 **Installation**: End User may install and use the number of copies of the Software that End User has acquired or has been granted a license.

2.2 **Evaluation Use**: If End User has ordered an evaluation license, End User may use the Software only for evaluation purposes and only during the applicable evaluation period. Any other use of the Software or beyond the applicable evaluation period is strictly prohibited.

2.3 **Copies**: End User may produce one back-up copy of the Software, whereby the use of such back-up copy shall be limited to replace the original Software, if the original Software is inoperable. End User shall keep records about the storage of such back-up copies and present such records to Licensor or End User's Supplier on demand.

2.4 **In-company and Intended Use**: End User may only use the Software in and for its own company, and only in sofar as strictly necessary for the intended use.

3 **LIMITATION OF USE**

3.1 **Distribution**: End User may not distribute, (sub)license, loan, sell, or exploit in any way, the Software or other content contained or displayed in the Software.

3.2 **Modification**: End User shall not - and shall prevent others from doing so - copy, translate, modify, create derivative works, disassemble, reverse engineer, decompile or otherwise use the Software including Software Documentation except as specifically authorized hereunder or by compulsory law.

4 **FEES, PAYMENT AND OTHER OBLIGATIONS**

4.1 **Fees, Payment**: The Software license fees and fees for other agreed services will be due and payable to Licensor, or if applicable to End Users' Supplier, according to the terms and conditions agreed between End User and Licensor, or if applicable between End User and End Users' Supplier.

4.2 **Terms and Conditions of End User's Supplier**: If End User has acquired a (sub)license from End Users' Supplier, End User is obliged to strictly conform fully and timely to all terms and conditions of the agreement(s) between End User and End Users' Supplier.

4.3 **Additional Instructions, Terms or Conditions**: End User is obliged to comply with any (additional) instructions, terms or conditions provided by Licensor, for example in the Online Community of Licensor.

5 **SUPPORT, MAINTENANCE AND CONSULTANCY SERVICES**

5.1 **Support, Maintenance & Consultancy Services**: Licensor will provide support and maintenance services to End Users: End Users can order consultancy services from Licensor directly.

6 **AUDIT**

6.1 **Audit**: Licensor shall have the right to appoint an independent auditor to inspect End User's premises and such records as well as such documents as he may reasonably require for the purpose of verifying End User's compliance with its Software-related obligations hereunder. Such audit shall be made during the normal hours of business and be conducted at Licensor's expense, except in those cases where the auditor detects deviations from the End User's contractual obligations to the disadvantage of Licensor, in which latter case the cost of the audit shall be borne by End User in addition to the rights Licensor may have as a consequence of End User's non-fulfilment of its contractual obligations.

7 **WARRANTIES**

7.1 **No Warranties/ Disclaimer of Warranties**: The Software is provided "as is," with all faults, defects and errors. Licensor expressly disclaims all warranties and liabilities, whether express or implied, including without limitation, warranties or representations of workmanship, merchantability, fitness for a particular purpose, durability, or that the operating of the licensed Software will be error free. Licensor does not warrant that the Software will be free of bugs, errors, viruses or other defects, and Licensor shall have no liability of any kind for the use of or inability to use the software, the software content or any associated service. However, Licensor strives, but is not obliged, to fix errors if these errors are reported to Licensor in writing with error details within a reasonable period after receipt by End User of the Software.

8 **INTELLECTUAL PROPERTY RIGHTS**

8.1 **Ownership**: All rights, title and interest in and to the Software (and any part thereof) including the Software Documentation (and any part thereof), other than those expressly granted herein, shall remain wholly vested in Licensor or its third party licensors. End User acknowledges that it has no rights whatsoever in respect of the Software including the Software Documentation save for those expressly granted to it by this Agreement. End User shall never be entitled to the source code of the Software.

8.2 **Third Party Software**: The Software may from time to time contain third party software which requires notices and/or additional terms and conditions may apply. Such required third party software notices and/or additional terms and conditions are made available on request and form integral part of and are incorporated by reference into this Agreement.

8.3 **Trademarks**: Nothing in this Agreement entitles End User to use any trademark of Licensor, its third party licensors or any other mark confusingly similar thereto, without the express written consent of Licensor.

8.4 **Notices**: End User may not remove, alter or obscure any copyright, trademark or other proprietary rights notice on or in the Software including the Software Documentation.

8.5 **Safeguard**: End User shall in any case use all reasonable efforts to safeguard Licensor's proprietary rights and the proprietary rights of Licensor' licensor(s) with regard to the Software including the Software Documentation

9 **INDEMNIFICATION**

9.1 **Indemnification**: End User agrees to defend, indemnify, and hold harmless Licensor, and if applicable End User's Supplier, and each of its respective officers, directors and employees, from and against any lawsuits, claims, losses, damages, fines and expenses (including attorneys' fees and costs) arising out of End User's use of the Software including the Software Documentation and/or third party software, or breach of any intellectual property rights of third parties, or any (other) breach of this Agreement.

10 **REMEDIES**

10.1 **Exclusive Remedy**: End User's exclusive remedy and Licensor's entire liability for breach of this Agreement shall be limited, at Licensor's sole and exclusive discretion, to (a) replacement of any defective Software or documentation; or (b) refund of the license fee paid to Licensor, payable in accordance with Licensor's refund policy if any.

10.2 **Limitation of Liability**: Licensor will not be liable under any section of this Agreement or under any contract, negligence, strict liability or other legal or equitable theory for any indirect, special, incidental, or consequential damages of any kind (including without limitation lost profits, lost reputations), whether or not it has been advised of the possibility of such loss in advance. This exclusion includes any liability that may arise out of third party claims against the other party. In no event will Licensor be liable for costs of procurement of substitute goods by End User. In addition, in no event whatsoever shall Licensor's total liability under this Agreement exceed the amount actually received by Licensor from End User, solely regarding the Product relating to the liability claim, during the twelve (12) months prior to the event which gave rise to such liability.

11 **TERMINATION**

11.1 **Termination**: Licensor may terminate this Agreement at any time with immediate effect upon notice in the event End User is not in compliance with any of the terms or provisions in this Agreement, any (other) agreement between End User and Licensor or between End User and End User's Supplier.

11.2 **Effect of Termination**: In the event of the termination of this Agreement for any reason: (a) the (sub)license granted to End User will terminate; and (b) End User shall cease all use of the Software and destroy or erase all copies of the Software in End User 's possession or control.

12 **GENERAL PROVISIONS**

12.1 **Entire Agreement**: This Agreement sets forth our entire agreement with respect to the Software and the subject matter hereof and supersedes all prior and contemporaneous understandings and agreements whether written or oral.

12.2 **Amendment**: Licensor reserves the right, in its sole discretion, to amend this Agreement from time to time by posting amendments to the Licensor's web site or by sending amendments to End Users. If applicable these amendments shall be sent by End User's Supplier. As from that moment the amended Agreement shall apply.

12.3 **Assignment**: End User may not assign this Agreement or any of its rights or obligations under this Agreement without the prior written consent of Licensor and any attempted assignment without such consent shall be void.

12.4 **Compliance of Law**: End User shall comply with any and all applicable laws, rules and regulations of the governmental authorities concerned.

12.5 Personal data: Under legislation regarding processing of personal data, the End User has certain obligations towards third parties, regarding protecting and providing information. End User is solely and fully responsible for compliance with such laws and regulations. Under such laws and regulations End User shall be the responsible party as meant in such laws and regulations. Any support or assistance requested to Licensor in this regard shall be provided as far as reasonably possible. Any costs associated with such support or assistance shall be borne by End User according to the then current fees of Licensor

12.6 **Confidentiality**: Parties shall ensure that all information received from the other party that is known or should reasonably be known to be of a confidential nature is kept secret, except when and insofar as obliged by law or court order. The party that receives such confidential information shall only use this information for the purpose for which it has been provided. Information shall in any event be regarded as confidential if it is designated as such by one of the parties

12.7 **Severability**: If any provision in this Agreement is invalid, void or unenforceable, the other provisions will remain in full force. In these circumstances parties shall replace the invalid, void or unenforceable provision by a valid provision in accordance with the object and purport of this Agreement, and in such a way that the new provision differs as little as possible from the invalid, void or unenforceable provision.

12.8 **Survival**: Any provision of this Agreement which imposes an obligation after termination or expiration of this Agreement shall survive the termination or expiration of this Agreement.

12.9 **Waiver**: A party's failure to exercise or delay in exercising any right, power or privilege under this Agreement shall not operate as a waiver. Nor shall any single or partial exercise of any right, power or privilege preclude any other or further exercise thereof.

12.10 **Headings**: The section headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement.

12.11 **Governing Law and Jurisdiction**: This Agreement, and any dispute or claim arising out of or in connection with it, its subject matter, or its formation (including non-contractual disputes or claims), shall be governed by and construed in accordance with the laws of the country or state where Supplier has its registered office OR as set out in Exhibit B without giving effect to its conflicts-of-laws provisions and excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG) and the Uniform Commercial Code (UCC). Each party irrevocably agrees to submit to the exclusive jurisdiction of the courts of the country or state where Supplier has its registered office OR (as applicable) as set out in the column entitled "Court of Jurisdiction" in the table set out in Exhibit A for the resolution of any dispute or claim arising out of or in connection with this Agreement or the legal relationships established by it.

Duly authorized for and on behalf of End User:	
Signed	
Name	
Title	
Date	

EXHIBIT A: List of Software Products subject to EULA

Alfabet Software			
Product Name and Operating System	**Quantity and License Metric**	**Product Code**	**Usage**
Alfabet IT Transformation Team on Windows	1 x Server	DPBT4	Production
-Alfabet Analysis User Team on Windows	500 x Named User	ABTAT	Production
-Alfabet Business User Team on Windows	5 x Named User	ABTBN	Production
-Alfabet Business User Non-PROD on Windows	5 x Named User	ABTBT	Non-Production
-Alfabet Transformation Server Non-PROD on Windows	2 x Server	ABTVN	Non-Production
-Alfabet Transformation Server Team on Windows	1 x Server	ABTVT	Production
Alfabet Data Steward User Team	10 x Named User	ABTDT	Production
Alfabet EAM Team	1 x Server	ABTET	Production
Alfabet Target Arch. Planning Team	1 x Server	ABTTT	Production
Alfabet Strat. Portfolio Mgt. Team	1 x Server	ABTST	Production
Alfabet Lean Portfolio Mgt. Team	1 x Server	ABTLT	Production
Horizzon Software			
Horizzon Design On Premise Subscription User	5 x Named User	DSG_OnPrem_Sub	Production
Horizzon Contribute On Premise Subscription User	10x Named User	CONT_OnPrem_Sub	Production
Horizzon Consume On Premise Subscription User	10x Named User	CONS_OnPrem_Sub	Production

License Metrics	
Named User	Software licensed by 'Named User' is limited to use by a total number of users which does not exceed the licensed quantity. For these purposes a 'user' means a uniquely identified individual employee of the Customer, entity (e.g. interface), device or process that accesses, operates, or maintains such Software.
Server	A 'Server' means a running instance of the Software capable of accepting requests and giving responses accordingly.

Non-Production Environments
The licenses of those of the Software whose “Usage” type is referred to in the table above as “Non-Production” (“**the Non-Production Environment Software**”) are restricted use licenses. The Non-Production Environment Software may be used by the Customer solely for testing & development purposes only and may not be used for the processing of live data in a production environment or any purposes other than testing & development purposes.

EXHIBIT B: Governing Law and Jurisdiction

If the Supplier is Registered In:	Governing Law is:	Court of Jurisdiction is:
France	France	Tribunal de Commerce de Paris In the event of lack of juridiction, Tribunal Judiciaire de Paris
Australia	NSW - Australia	NSW - Australia
Singapore	Singapore	Singapore
United States	State of Massachusetts	State of Massachusetts EACH PARTY WAIVES ALL RIGHT TO A JURY TRIAL IN ANY PROCEEDING ARISING OUT OF THIS AGREEMENT
Mexico	United Mexican States	Mexico City
Brazil	Brazil	Sao Paulo
Italia	Italy	Milan
United Kingdom	England and Wales	London
Germany	Germany	Berlin
Morocco	Morocco	Casablanca
Netherlands	Netherlands	Almelo
Belgium	Belgium	Brussels
Canada	Province of Ontario and Canada	Ontario
India	India	Singapore International Arbitration Centre (“**SIAC**”) in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("**SIAC Rules**") for the time being in force, which rules are deemed to be incorporated by reference in this clause. The seat of the arbitration shall be Singapore. The language of the arbitration shall be English
Saudi Arabia	Kingdom of Saudi Arabia	Saudi Arabian court or judicial tribunal of competent jurisdiction.
United Arab Emirates	Dubai International Financial Center (“DIFC”)	Arbitration Rules of the DIFC-LCIA Arbitration Centre, which Rules are deemed to be incorporated by reference into this clause. The number of arbitrators shall be one. The seat, or legal place, of arbitration shall be the DIFC, Dubai, UAE. The language to be used in the arbitration shall be English. The governing law of the contract shall be the substantive law of the Dubai International Financial Center (“DIFC”).